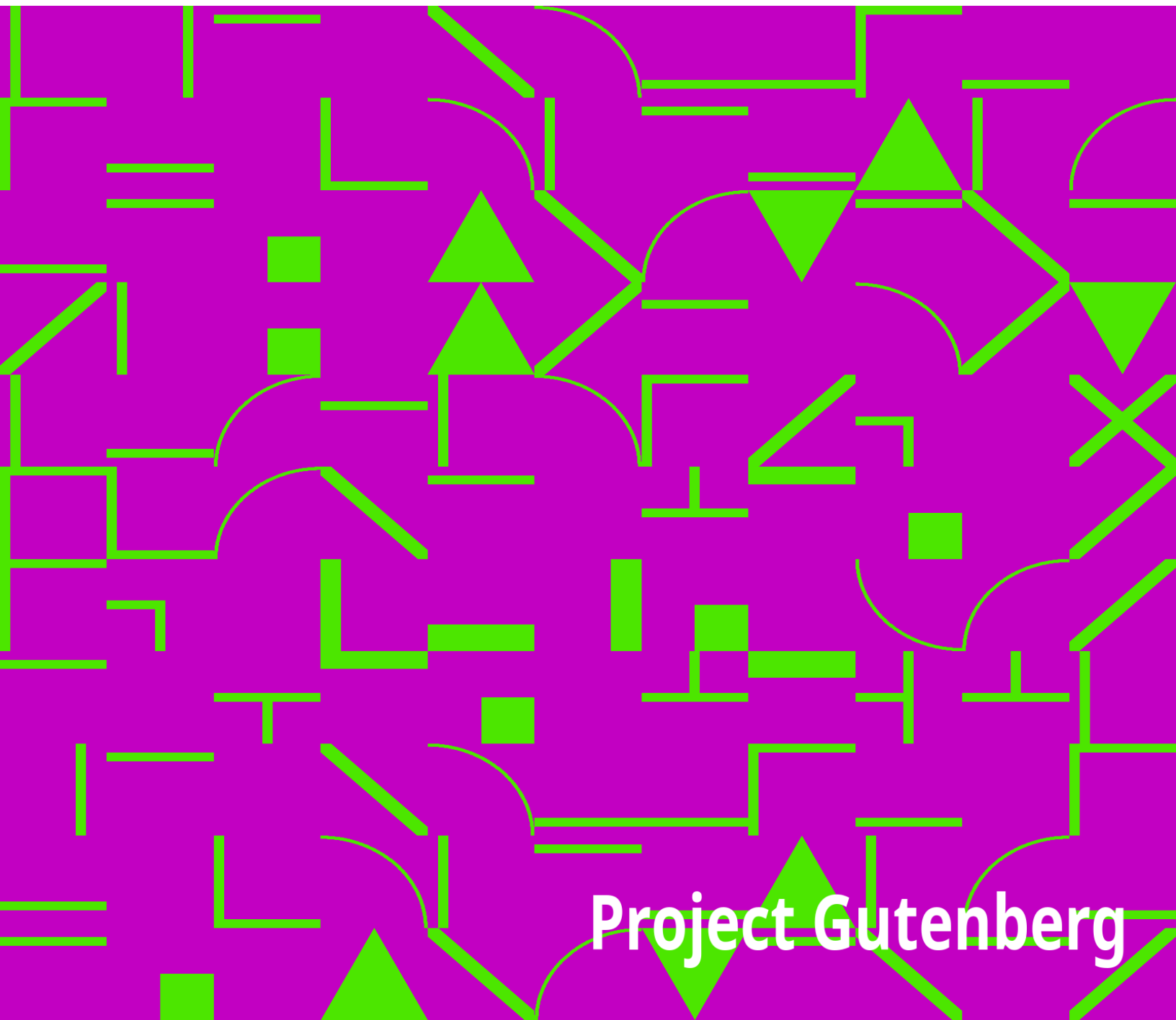


# The Mirror of Literature, Amusement, and Instruction. Volume 17, No. 496, June 27, 1831

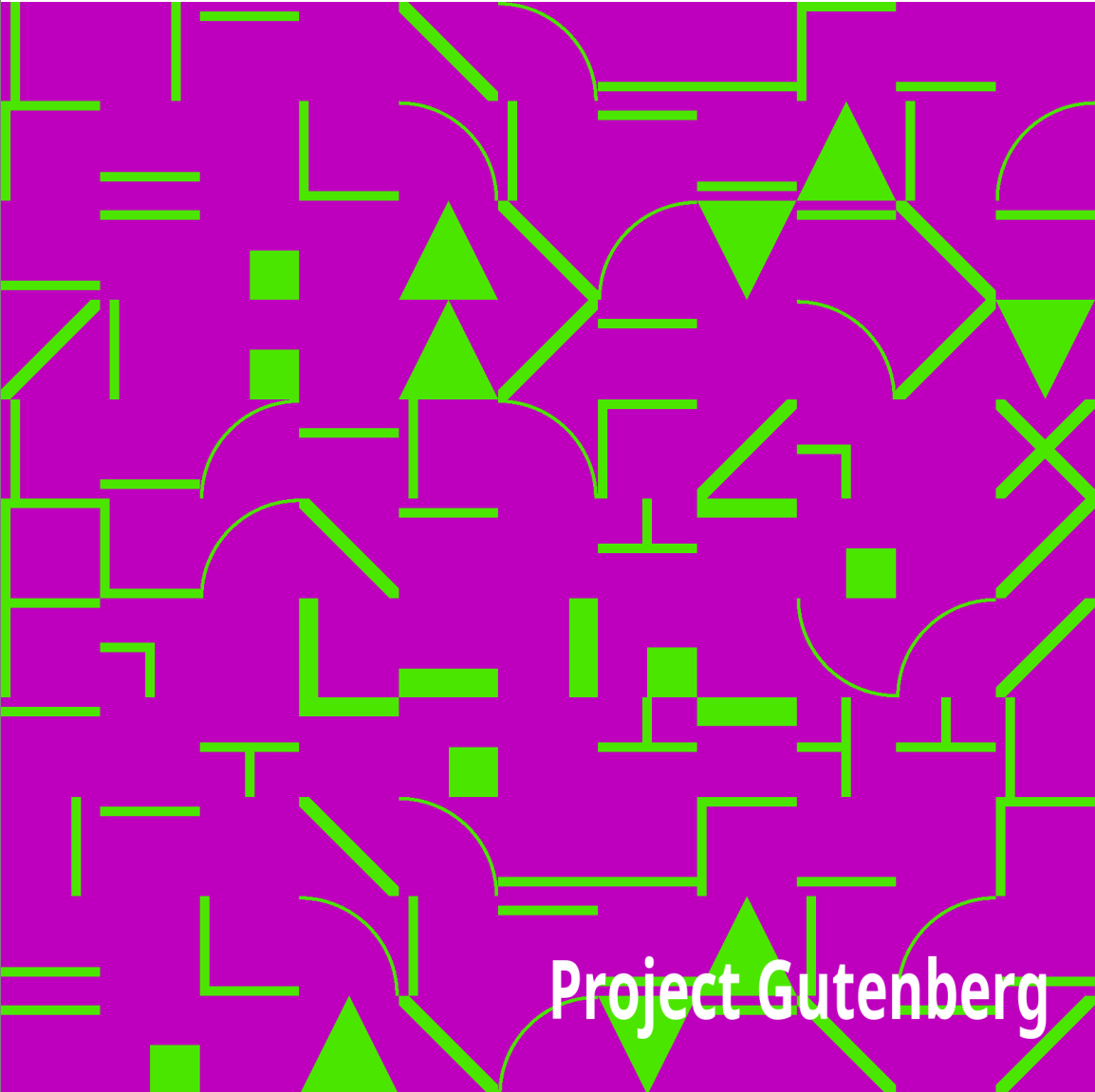
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**The Mirror of Literature, Amusement, and  
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# THE MIRROR OF LITERATURE, AMUSEMENT, AND INSTRUCTION.

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Vol. 17. No. 496.

SATURDAY, JUNE 27, 1831.

PRICE 2*d*.

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**BARON BROUGHAM & VAUX.**

Lord High Chancellor of Great Britain,  
&c. &c.

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**THE**

**Mirror**

**OF**

**LITERATURE, AMUSEMENT,**  
**AND**

**INSTRUCTION:**

**CONTAINING**

**ORIGINAL ESSAYS;**

**HISTORICAL NARRATIVES; BIOGRAPHICAL MEMOIRS;  
SKETCHES OF SOCIETY; TOPOGRAPHICAL DESCRIPTIONS;  
NOVELS AND TALES; ANECDOTES;**

**SELECT EXTRACTS**

**FROM**

**NEW AND EXPENSIVE WORKS;**

***POETRY, ORIGINAL AND SELECTED;***

**The Spirit of the Public Journals;**

**DISCOVERIES IN THE ARTS AND SCIENCES;**

***USEFUL DOMESTIC HINTS;***

**&c. &c. &c.**

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**VOL. XVII.**

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**London:**

**PRINTED AND PUBLISHED BY J. LIMBIRD, 143, STRAND,**

***(Near Somerset House.)***

**1831.**

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## PREFACE.

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Each of our semi-anniversaries calls for a variation in our thankful expressions to the public for their continued patronage. Yet we are prone to confess ourselves puzzled to ring the changes even on so pleasurable a theme as gratitude—although it is equally delightful to the donor and receiver. We will, however, persevere, to keep our friendship with the public in constant repair, and to gain new friends; for it is in the course of a periodical work as elsewhere in the world: "if a man does not make new acquaintance as he advances through life, he will soon find himself left alone." There is, moreover, something agreeable in writing a preface: it yields a second crop of pleasurable associations: and the brief retrospect of six months breaks up the *tedium* which may at some time or other be attached to literary pursuits. We collect the six-and-twenty sheets into a volume, and turn over their leaves until they almost become new acquaintance: some of their columns point to current events, and thus by a little aid of memory, make an outline chronology of the half-year; and, above all, if we have pleased the reader, we, at the same time, enjoy the self-satisfaction of having been employed to so gratifying an end. We like too the spirit of acquaintanceship which these prefacings, meetings, and greetings tend to keep up, although there may be persons who impatiently turn over a preface as the majority of an audience at the theatre rise to leave as soon as the last scene of a pantomime is shown.

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The contributions of Correspondents abound in this volume. Their subjects belong to that class of inquiry which is useful and entertaining, and their research is amusing without dry-as-dust antiquarianism: this is a serviceable feature, inasmuch as it is conversational; and we know "what is said upon a subject is to be gathered from a hundred people." So it is with not a few of these communications: separately, their value may be small; but, collectively, they remind us of Dr. Johnson's quaint illustration of the many ingredients of human felicity: "Pound St. Paul's Church, into atoms, and consider any single atom; it is, to be sure, good for nothing; but put all these together, and you have St. Paul's Church." A single article may occasionally appear trifling; but, take the sheet, and its bearing is obvious; and in the volume still more so. Our

Correspondents only enjoy the reward of seeing their papers in print: *esto perpetua* is the only charm we use; and our poetical friends would gladly accept the *perpetua* for the

Nods, and becks, and wreathed smiles

of the heroines of their verse.

SEVENTEEN is a promising time in life: it is redolent of youth, and hope, and joy; may not the context hold good in art and literature. Strictly speaking, we are but in our ninth year, although our volumes number seventeen. If we continue to partake as largely of the gale of public favour as hitherto, we shall not despair of an evergreen old age. We know the value of this favour, and shall strive to maintain it accordingly. It is to us like the Queen of Chess:

Lose not the Queen, for ten to one,  
If she be lost, the game is gone.

Sterne, who delighted in large type and blanks, would probably call this, as he did all life, "a mingled yarn;" and so we have done.

143, *Strand*, June 27, 1831.

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**MEMOIR**

**OF**

## **BARON BROUGHAM AND VAUX,**

### **LORD HIGH CHANCELLOR OF GREAT BRITAIN, &C.**

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His purpose chose, he forward pressed outright,  
Nor turned aside for danger or delight.—*COWLEY.*

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The illustrious subject of this Memoir is the eldest son of a gentleman of small fortune, but ancient family, in Cumberland,<sup>1</sup> His mother was the daughter of a Scotch clergyman; in the mansion of whose widow, on the Castle Hill of Edinburgh, the father of Lord Brougham lodged when prosecuting his studies at the University there. Chambers, the laborious topographical historian of the Modern Athens, says that Lord Brougham was born in St. Andrew's Square, in that city, though this has been disputed. The family of the late Mr. Brougham consisted of four sons:—Henry John, an extensive wine-merchant in Edinburgh, who died at Boulogne, about two years since; James, the Chancery Barrister, who formerly sat with Baron Abercromby in parliament, for Tregony, and sits at present for Downton, Wilts; and William, who has recently been appointed a Master in Chancery, and elected Member for the Borough of Southwark.

In early life Mr. Brougham was called to the bar of the Supreme Court of Edinburgh, where he practised for some time, and with considerable success, if we may judge from his frequent employment in Scotch appeals. His selection, too, on the part of persons charged with political offences to conduct their defence, would imply him to be well read in the institutions of his country. It was while at the Scotch Bar that, in conjunction with the late Mr. Francis Homer and Mr. Jeffrey, he planned and established the *Edinburgh Review*, of which he was for many years a most able and constant supporter. About this time also he became a member of the celebrated Debating Society at Edinburgh.

Although professionally a lawyer, Mr. Brougham's ambition soon became directed to the senate; and, observes a clever contemporary, "it is an instructive

example of the working of our admirable system of representation, that, up to the 16th of October last, Henry Brougham, the greatest orator and statesman that perhaps ever enlightened Parliament, was indebted for his seat to the patronage of a borough-holding Peer." He first took his seat for Camelford, a borough in the interest of the Duke of Bedford. In 1812, he contested Liverpool with Mr. Canning, and failed; and, in the same year, he was nominated for the Inverkeithing district of Boroughs, and failed there also. He was, however, subsequently returned for Winchelsea, in Sussex. During the discussions in parliament respecting the Princess of Wales, Mr. Brougham, we believe, was honoured with the confidence of her Royal Highness, and espoused her cause with much effect. His earliest efforts as a British senator were likewise distinguished by the same regard to the rights of individuals, and the liberties of the country, which he has uniformly manifested to the present time. Nor was he then less firm in opposition to what he deemed the encroachments of the crown, and the extravagances and abuses of the government, than he has since proved. His bold denial of the sovereign's right to the droits of the Admiralty, in 1812, will not soon be forgotten.

In the early part of 1816, Mr. Brougham brought forward a motion for preserving and extending the liberty of the press, for which the ministers, particularly Lord Castlereagh (who knew well how to use "the delicious essence,") passed on him the highest encomiums; and miscalculating the firmness of the bepraised, some persons thought the minister's eulogy a lure for the member's vote; but the result proved that Mr. Brougham was above all temptation. In the same year he made a tour on the continent: in France he was the object of much attention; and he afterwards visited the residence of the Princess of Wales, in Italy, as was supposed, on a mission of some importance.

In this year also, Mr. Brougham delivered two speeches in parliament, which are memorable for the truth of their prospective results. In one of them, on the treaty of the Holy Alliance, occurs the following almost prophetic passage: "I always think there is something suspicious in what a French writer calls, '*les abouchemens des rois.*' When crowned heads meet, the result of their united councils is not always favourable to the interest of humanity. It is not the first time that Austria, Russia, and Prussia have laid their heads together. On a former occasion, after professing a vast regard for truth, religion and justice, they adopted a course which brought such misery on their own subjects, as well as those of a neighbouring state—they made war against that unoffending country, which found little reason to felicitate itself on its conquerors being

distinguished by Christian feelings. The war against Poland, and the subsequent partition of that devoted country, were prefaced by language very similar to that which this treaty contains; and the proclamation of the Empress Catherine, which wound up that fatal tragedy, had almost the very same words."—The second speech to which we allude was on the abuses of ancient charitable institutions. Speaking of schools, the funds of which were landed and freehold property, Mr. Brougham remarked, "In one instance, where the funds of the charity are £450, one boy only is boarded and educated. In another case, where the revenue of the establishment is £1,500. a year, the appointment of a master lying in the lord of the manor, that gentleman gave it to a clergyman, who out of this sum paid a carpenter in the village £40. for attending the school. The funds in the country, applicable to the education of the poor, cannot," he added, "be less than one hundred and fifty thousand pounds." The result of these and similar representations was the appointment of a committee to investigate the state of the various charities of the kingdom, and inquire into the application of their funds; from which measure great public good has already resulted.

In 1818, Mr. Brougham was invited to become a candidate for the county of Westmoreland, where his family have been settled for the last sixty or seventy years: he could not, however, withstand the powerful influence of the Lowther family, and thus lost his election. He made another effort, at the dissolution of parliament, consequent upon the death of George III., but was again unsuccessful; and a third time in 1826.

We are now approaching one of the most eventful eras of Mr. Brougham's parliamentary life: we mean his intrepid defence of the late Queen. Mr. Brougham was the first to dispatch M. Sicard, the old and faithful servant of the Queen, with the intelligence of the death of George III. The Queen immediately replied to Mr. Brougham, that she was determined to return to England; and on February 22, 1820, Mr. Brougham received from Lord Castlereagh an assurance that no indignity should be offered to her Majesty while abroad. Mr. Brougham was now appointed her Majesty's Attorney-General, on which occasion he was admitted within the bar, and assumed the silk gown, which was subsequently taken from him, but restored.

The Queen having arrived at St. Omer, on her way to England, Lord Hutchinson, on the part of the King, was despatched to prevent, by a liberal offer, her leaving the continent. Mr. Brougham consented to accompany his

lordship, willing to co-operate in the purpose yet bound by office and by friendship to secure for the queen the best possible terms. The Queen, however, was resolved, and while the deputies were exchanging notes, her Majesty sailed for England, and proceeded to London amidst all the demonstrations of popular triumph. Mr. Brougham, with Mr. Denman, on behalf of the Queen, next met the Duke of Wellington and Lord Castlereagh, on behalf of the King, to propose measures for an amicable arrangement, but the insertion of her Majesty's name in the Liturgy being refused, the negotiation failed. The struggle was now fast approaching. The notable green bag was laid on the table of the House of Commons, and Mr. Brougham commenced by deprecating a hasty discussion. The next day the minister developed the projected prosecutions of the government; Mr. Brougham replied, and concluded by demanding for the Queen a speedy and open trial. We need only advert to his subsequent reply to the note of Lord Liverpool, to the speech of Mr. Canning, and to the conciliatory proposition of Mr. Wilberforce. Then followed his speech at the bar of the House of Lords against the intended mode of investigation—his speech against the bill of Pains and Penalties—his reply to the crown counsel, and afterwards to the Lord Chancellor—and finally his defence of the Queen against the several charges. His *defence*, it will be remembered, lasted nearly two days, and Mr. Brougham, amidst profound silence, concluded one of the most eloquent speeches ever heard within the walls of parliament—with this pathetic appeal:

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"My lords, I call upon you to pause. You stand on the brink of a precipice. You may go on in your precipitate career—you may pronounce against your Queen, but it will be the last judgment you ever will pronounce. Her persecutors will fail in their objects, and the ruin with which they seek to cover the Queen, will return to overwhelm themselves. Rescue the country; save the people, of whom you are the ornaments; but severed from whom, you can no more live than the blossom that is severed from the root and tree on which it grows. Save the country, that you may continue to adorn it—save the crown, which is threatened with irreparable injury—save the aristocracy, which is surrounded with danger—save the altar, which is no longer safe when its kindred throne is shaken. You see that when the church and the throne would allow of no church solemnity in behalf of the Queen, the heartfelt prayers of the people rose to heaven for her protection. I pray heaven for her; and I here pour forth my fervent supplications at the throne of mercy, that mercies may descend on the

people of this country richer than their rulers have deserved; and that your hearts may be turned to justice."

The result need scarcely be alluded to. Men of all parties, however discordant might be their opinions upon the point at issue, acknowledged and admired the intrepidity and splendid talents of Mr. Brougham on this memorable occasion.

Brilliant as has been the parliamentary career of Mr. Brougham from this period, our limits will allow us only to advert to a few of its brightest epochs. Whether advocating the rights and liberties, and a spirit of social improvement, at home, or aiding the progress of liberal opinion abroad, we find Mr. Brougham exercising the same uncompromising integrity and patriotic zeal. Spain, in 1823, became a fitting subject for his masterly eloquence. His remarks on the French government, on April 14, in the House of Commons, on the consideration of the policy observed by Great Britain in the affairs of France and Spain, will not soon be forgotten: "I do not," said Mr. Brougham, "identify the people of France with their government; for I believe that every wish of the French nation is in unison with those sentiments which animate the Spaniards. Neither does the army concur in this aggression; for the army alike detests the work of tyranny, plunder, cant, and hypocrisy. The war is not commenced because the people or the army require it, but because three or four French emigrants have obtained possession of power. It is for such miserable objects as these that the Spaniards are to be punished, because they have dared to vindicate their rights as a free and independent people. I hope to God that the Spaniards may succeed in the noble and righteous cause in which they are engaged."

In 1824, (June 1), we find Mr. Brougham in the House of Commons, moving an address to the King, relative to the proceedings at Demerara against Smith, the missionary; but, after a debate of two days, the motion was negatived.<sup>[2](#)</sup>

During the period of Mr. Canning's ministry, his liberality gained Mr. Brougham's support: this is the only instance of Mr. Brougham's not being opposed to the minister of the day; and, observes a political writer, "he has been as much above the task of drudging for a party as drudging for a ministry."

The year 1828 is a memorable one in Mr. Brougham's parliamentary life. Early in the session, upon the debate of the battle of Navarino, we find him



expressing his readiness to support the ministry as long as the members who composed it showed a determination to retrench the expenditure of the country, to improve its domestic arrangements, and to adopt a truly British system of foreign policy. It was on this occasion that Mr. Brougham used the expression which has since become so familiar—"The schoolmaster is abroad." On Feb. 7, Mr. Brougham brought forward a motion on the State of the Law, in an elaborate speech of six hours delivery. The debate was adjourned to February 29, when Mr. Brougham's motion, in an amended shape, was put and agreed to, requesting the King to cause "due inquiry to be made into the origin, progress, and termination of actions in the superior courts of common law in this country;" and "into the state of the law regarding the transfer of real property." Even the heads of this speech would occupy one of our pages. A passage much quoted at the time of its publication is a good specimen of Mr. Brougham's forcible style of illustration: "He was guilty of no error—he was chargeable with no exaggeration—he was betrayed by his fancy into no metaphor, who once said, that all we can see about us, King, Lords, and Commons, the whole machinery of the State, all the apparatus of the system and its varied workings, end simply in bringing twelve good men into a box." In the same month, Mr. Brougham spoke at great length in support of Lord John Russell's motion for the repeal of the Test and Corporation Acts. On March 6, Mr. Brougham spoke in support of Mr. Peel's motion for Catholic Emancipation, which he described as going "the full length that any reasonable man ever did or ever can demand; it does equal justice to his Majesty's Roman Catholic subjects; it puts an end to all religious distinctions; it exterminates all civil disqualifications on account of religious belief. It is simple and efficacious; clogged with no exceptions, unless such as even the most zealous of the Catholics themselves must admit to be of necessity parcel of the measure."

In the session of 1829, Mr. Brougham explained the proceedings of the Commissioners appointed to inquire into Public Charities, who, it appeared, had examined sixteen counties, and partially examined ten; altogether amounting to more than 19,000 charities, being more than half the number in the whole kingdom.

In 1830, Mr. Brougham supported Lord John Russell's plan for Parliamentary Reform, as an amendment to a motion of Mr. O'Connell; in which Mr. Brougham opposed universal suffrage and vote by ballot. In the same week also, he spoke at some length on the punishment of Forgery by death. The

opinions which he expressed, Mr. Brougham said, he had learned from his great and lamented friend, Sir Samuel Romilly; and he concluded by expressing his hope that he should live to see the day when this stain should be removed from our statute-book. In the following month Mr. Brougham brought in a bill for local jurisdictions in England, for diminishing the expense of legal proceedings. On June 24, Mr. Brougham spoke at great length upon the inadequacy of the ministerial bill for the reform of the Court of Chancery. On July 13, he moved for the abolition of West India Slavery, and expatiated at great length and with extreme earnestness—first, on the right of the mother country to legislate for the colonies, and next on the legal and moral nature of slavery.

Upon the dissolution of parliament, consequent upon the death of George IV., Mr. Brougham was invited to the representation of the extensive and wealthy county of York. In his speech to the electors he alluded to Parliamentary Reform, a revision of the Corn Laws, and the extinction of Colonial Slavery, as three grand objects of his ambition; and concluded by thus explaining his becoming a candidate—"*because it would arm him with an extraordinary and a vast and important accession of power to serve the people of England.*" It need scarcely be added, that his election was secured; his return was free of all expense: indeed, never was triumph more complete.<sup>3</sup>

Soon after the assembling of the new parliament, Mr. Brougham, in connexion with the topic of the recent revolutions on the continent, and parliamentary reform in this country, concluded an interesting debate by saying—"He was for reform—for preserving, not for pulling down—for restoration, not for revolution. He was a shallow politician, a miserable reasoner, and he thought no very trustworthy man, who argued, that because the people of Paris had justifiably and gloriously resisted lawless oppression, the people of London and Dublin ought to rise for reform. Devoted as he was to the cause of parliamentary reform, he did not consider that the refusal of that benefit, or, he would say, that right, to the people of this country (if it were a legal refusal by King, Lords, and Commons, which he hoped to God would not take place) would be in the slightest degree a parallel case to any thing which had happened in France."

Mr. Brougham's elevation to the exalted station which he now fills need be related but briefly, since the particulars must be fresh in the recollection of our readers. Upon the resignation of the Wellington ministry—with the title of

BARON BROUGHAM AND VAUX, he took the oaths as Lord Chancellor, November 22, and his seat in the Chancery Court on November 25, 1830.

In the House of Lords, in reply to some censurable observations on his acceptance of office which had been made elsewhere, his lordship explained his motives with great candour. After an allusion to his difficulty in resigning his high station as a representative for Yorkshire, Lord Brougham said, "I need not add, that in changing my station in parliament, the principles which have ever guided me remain unchanged. When I accepted the high office to which I have been called, I did so in the full and perfect conviction, that far from disabling me to discharge my duty to my country—far from rendering my services less efficient, it but enlarged the sphere of my utility. The thing which dazzled me most in the prospect which opened to my view, was not the gewgaw splendour of the place, but because it seemed to afford me, if I were honest—on which I could rely; if I were consistent—which I knew to be matter of absolute necessity in my nature; and if I were as able as I knew myself honest and consistent—a field of exertion more extended. That by which the Great Seal dazzled my eyes, and induced me to quit a station which till this time I deemed the most proud which an Englishman could enjoy, was, that it seemed to hold out the gratifying prospect that in serving my king I should be better able to serve my country."

Already has the official elevation of Lord Brougham been attended with manifest advantages, and promises of still greater benefits to the nation. Only such as are accustomed to the cares of office can form but a faint idea of the perplexities which beset the Lord Chancellor on the recent dissolution of parliament; yet in this arduous scene Lord Brougham is believed by all but the bitterest of his political opponents, to have comported himself with becoming equanimity. A political contemporary observes, upon his recent appointment—"There is no instance in modern times of an elevation marked with the same characters. Lord Brougham had never before been in office; he had passed through none of the degrees which for the most part, lead to the proud eminence where he now stands. We have had learned Chancellors, and political—or, we would rather say, politic Chancellors—but never before Lord Brougham (with, perhaps, the exception of Erskine), have we had what may be justly called a popular Chancellor. \* \* The consideration which he disdained to accept from party or from power in the House, his conduct has won from the great mass of his countrymen out of it. We speak the plain and simple truth when we say—and that not for the first time—that at no period of our history

since the era of the Commonwealth has any one Englishman contrived to fix so many eyes upon him as Lord Brougham has for the last few years."<sup>4</sup>

Of Lord Brougham's qualifications as a barrister we have already spoken. To the hearing of appeals in the House of Lords, an important section of the public business, his Lordship brings qualifications not possessed by any of his predecessors. Seven years' practice at the Scotch bar, and a very extensive employment in appeals from that country (for he has been engaged in almost every case of importance for the last ten years) have made him familiar with the machinery of the law on which his decisions bear; and he therefore undertakes his judicial task with professional confidence.

Besides contributing to the *Edinburgh Review*, as we have noticed, Lord Brougham is the author of several papers in *Nicholson's Journal*, and in the Transactions of the Royal Society, of which his Lordship is a distinguished member. The chief entire work which bears his name is entitled, "An Inquiry into the Colonial Policy of the European States," 2 vols. 8vo. 1828; and a masterly pamphlet "On the State of the Nation," which has run through many editions. Several of his speeches have likewise been published.

It is, however, in connexion with *Public Education*, that the pen of Lord Brougham has been more extensively employed. His zealous co-operation with Dr. Birkbeck, and other patriotic men of talent, in the establishment of Mechanics' Institutions in the year 1824, must be gratefully remembered by thousands who have enjoyed their benefits; and, for the advantage of the London Mechanics' Institution, were republished from the *Edinburgh Review*, his excellent "*Practical Observations upon the Education of the People*, addressed to the Working Classes and their Employers."—The twentieth edition of this pamphlet is now before us, and from its conclusion, to show the practical utility of the author's suggestions, we quote the following:—

"I rejoice to think that it is not necessary to close these observations by combating objections to the diffusion of science among the working classes, arising from considerations of a political nature. Happily the time is past and gone when bigots could persuade mankind that the lights of philosophy were to be extinguished as dangerous to religion; and when tyrants could proscribe the instructors of the people as enemies to their power. It is preposterous to imagine that the enlargement of our acquaintance with the laws which regulate the universe, can dispose to unbelief. It may be a cure for superstition—for

intolerance it will be the most certain cure; but a pure and true religion has nothing to fear from the greatest expansion which the understanding can receive by the study either of matter or of mind. The more widely science is diffused, the better will the Author of all things be known, and the less will the people be 'tossed to and fro by the sleight of men, and cunning craftiness, whereby they lie in wait to deceive.' To tyrants, indeed, and bad rulers, the progress of knowledge among the mass of mankind is a just object of terror: it is fatal to them and their designs; they know this by unerring instinct, and unceasingly they dread the light. But they will find it more easy to curse than to extinguish. It is spreading in spite of them, even in those countries where arbitrary power deems itself most secure; and in England, any attempt to check its progress would only bring about the sudden destruction of him who should be insane enough to make it.

"To the Upper Classes of society, then, I would say, that the question no longer is whether or not the people shall be instructed—for that has been determined long ago, and the decision is irreversible—but whether they shall be well or ill taught—half informed or as thoroughly as their circumstances permit and their wants require. Let no one be afraid of the bulk of the community becoming too accomplished for their superiors. Well educated, and even well versed in the most elevated sciences, they assuredly may become; and the worst consequence that can follow to their superiors will be, that to deserve being called their *bettors*, they too must devote themselves more to the pursuit of solid and refined learning; the present public seminaries must be enlarged: and some of the greater cities of the kingdom, especially the metropolis, must not be left destitute of the regular means within themselves of scientific education.

"To the Working Classes I would say, that this is the time when by a great effort they may secure for ever the inestimable blessing of knowledge. Never was the disposition more universal among the rich to lend the requisite assistance for setting in motion the great engines of instruction; but the people must come forward to profit by the opportunity thus afforded, and they must themselves continue the movement once begun. Those who have already started in the pursuit of science, and tasted its sweets, require no exhortation to persevere; but if these pages should fall into the hands of any one at an hour for the first time stolen from his needful rest after his day's work is done, I ask of him to reward me (who have written them for his benefit at the like hours) by saving threepence during the next fortnight, buying with it Franklin's Life, and reading the first page. I am quite sure he will read the rest; I am almost

quite sure he will resolve to spend his spare time and money, in gaining those kinds of knowledge which from a printer's boy made that great man the first philosopher, and one of the first statesmen of his age. Few are fitted by nature to go as far as he did, and it is not necessary to lead so perfectly abstemious a life, and to be so rigidly saving of every instant of time. But all may go a good way after him, both in temperance, industry, and knowledge, and no one can tell before he tries how near he may be able to approach him."

We may here mention that in 1825, Lord Brougham was elected Lord Rector of the University of Glasgow; his opponent, Sir Walter Scott, lost the election by the casting vote of Sir James Mackintosh, in favour of Lord Brougham.

Among the originators of the London University, Lord Brougham occupies a foremost rank, and partly by the aid of his indefatigable talents, that establishment was opened, in 1828, within seventeen months from the day on which the first stone was laid.

Early in the year 1827 was established "the Society for the Diffusion of Useful Knowledge," of which Lord Brougham became, and continues to this day, chairman. In the original prospectus, issued under his sanction, we find "The object of the Society is strictly limited to what its title imports, namely, the imparting useful information to all classes of the community, particularly to such as are unable to avail themselves of experienced teachers, or may prefer learning by themselves." The Society commenced their labours by a set of Treatises, the first or "Preliminary Treatise," "*On the objects, pleasures, and advantages of Science*," being from the pen of Lord Brougham; and in perspicuity and popular interest, this treatise is unrivalled in our times. His Lordship is also understood, in conjunction with Mr. Charles Bell, to be engaged in illustrating with notes an edition of Paley's works, to be published by the above Society.

In the preceding outline of the political life of Lord Brougham, we have quoted but few points of his personal character. This has been so well drawn, and so recently too, that we are induced to adopt the following traits from a contemporary Magazine.<sup>5</sup> The paper whence these are extracted, purports to be a description of the Lord Chancellor's first levee:—

"Unfeigned respect for, and a slight personal acquaintance with, the noble person who now holds the seals, led me to attend his last levee. The practice of

receiving the respects of the public on one or two stated occasions is sufficiently ancient, but I have understood was discontinued, or not much observed, in the latter days of Lord Eldon. It was revived with somewhat greater splendour by Lord Lyndhurst, but still it attracted little public notice. I incline to think that it was reserved for Brougham to illustrate the ancient custom, by the splendour of those who chose to be dutiful to the Lord Chancellor. The fashion of going to court is such, that it infers little personal respect to the individual monarch; but the practice of attending the levee of an inferior personage is to be ascribed to the respect which individual eminence commands. When Lord Brougham announced his levees, it could not be known whether he should receive the homage of the aristocracy, to whom it was not supposed that his lordship's politics were very amicable. It was moreover thought that the republican, or, to speak more guardedly, the whig Lord Chancellor would care little for a custom in which there was no manifest utility. He had declared that the gewgaws of office delighted him not; and I dare say he would fain bring his mind to believe that all ceremonial was idle, perhaps contemptible. But it is the greatest mistake to suppose that Lord Brougham is inattentive to the ceremonies with which his high place is surrounded. A careful observer will see clearly that imposing forms are perfectly agreeable to his mind; nobody could ridicule form better, so long as he held no situation which required the observance of customary rules; but elevated to his present distinction, it is plain that he enjoys all the little peculiarities of his office. Somebody said that he presided in the House of Lords in a bar whig, and instanced the fact as a proof of his reforming temper; but it was not true. Accident may have obliged him to take his seat in this ungainly form, but he had no purpose of deviating from the ancient full-bottom, and he is now to be seen in all the amplitude of the olden fleece. In like manner he observes the strict *regime*, so fantastical to a stranger, of causing counsel to be shouted for from without, although they are actually present; and he adds to the oddness of this custom by receiving them with a most imposing mien, and putting on his chapeau as they advance. This is a form, for which the model is not to be found in the practice of his immediate predecessors. It is possible, however, that his extensive and minute reading may have made him aware that Wolsey, peradventure, or some great chancellor of old, had the fancy to be covered when the suppliants approached. Let any one observe with what studied dignity he performs the duty of announcing the royal assent to Acts of Parliament: he assumes a solemnity of tone for which his voice is not ill-fitted, but which is unusual with him. These small circumstances, and many such which might be mentioned, show that State is

not uncongenial to his mind. Why should it? His weakness consists in the unreal contempt for what is not really contemptible. With his high notions of office, I should have been surprised if he had foregone the levee; and assuredly he has not reckoned without reason; for a more splendid or flattering pageant could not be witnessed than that which his rooms exhibited. Unquestionably the most remarkable man in the empire at this moment, it is his fortune to attract the honourable regards of all who are distinguished as compeers. It is not my intention to offer any estimate of what I conceive to be his genuine worth, as he may be appreciated in a more dispassionate time; I speak of him only as a great man filling a very large space in the consideration of the empire. Judging from the throng of all classes upon this occasion, whose favour is desirable, no man is more popular \* \* \*. The Chancellor took his place at a corner of the room, backed by his chaplain, and was soon encircled by the visitants; his dress remarkably plain, being a simple suit of velvet in the court cut. The names were announced from the bottom of the stairs, and each person as he entered walked up to the Chancellor and offered his respects. The numbers were so great that it was impossible to devote any marked attention to each; as soon, therefore, as the visiter had made his bow, he retired into the throng, or took his departure through the adjoining room. I was not present at the first of the levees which were held, and at which the attendance was very distinguished; but a friend who was, spoke very highly of the manner in which the Chancellor performed his noviciate. The Archbishop of Canterbury came early, and was very kindly received: he was followed by the Archbishop of York, and several other bishops, whose attendance gave proof that, differ as they might from Lord Brougham, they surely did not consider him an enemy to the Church \* \* \*. The most remarkable visiter of that evening was the Duke of Wellington;—the crowd was astonished, and I dare say the Chancellor himself was surprised, when his name was sent up—I doubt if they had ever met in the same room before. Their political lives, with the exception of the Catholic Question, were one unvarying course of opposition, if not enmity. I suspect that for a time the Duke despised the talk of the lawyer; and, on the other hand, Brougham had often declared, that the respect which he entertained for military glory was not very lofty. Some of his bitterest tirades were levelled at the Duke personally. No one will deny that it was high-minded in the Duke to lay aside resentment of every sort, and offer this mark of respect as well to the man as the office. The Chancellor was flattered by the attention, and shook the Duke by the hand very cordially \* \* \*. Not the least remarkable personage in the room was the Lord Advocate of Scotland. Brougham and he are very old friends, and have been much engaged in the same species of literature.



Brougham was his predecessor in the editorship of the Edinburgh Review—a fact which is not generally known, but which is certain. Brougham was not the first editor, having filled that office for a short time after Sidney Smith withdrew from the situation. Jeffrey appeared extremely *petit* in his court-dress, and did not seem very much at home: he was acquainted with but few of his fellow visitors, and had too much good taste to occupy much of the Chancellor's attention: they did not seem to hold any conversation beyond the usual common-place inquiries \* \* \*. After I had paid my respects to the Chancellor, there came tripping up the Marquess of Bristol, with a springy step, which he must surely have acquired at the old court of France; for I am sure that no such movement could be attained on English ground. The elasticity of this noble lord was such, that when once put in motion, he continued to spring up and down in the manner of the Chinese figures, which are hawked by the Italian toy-venders. Had I been told that the head of the house of Newry was a dancing-master, who had not yet learned the present modes, I should certainly have believed the story without scruple, if I had met him anywhere else. He had no sooner left the Chancellor, than he was laid hold of by a fidgetty solicitor, who was the only member of his class in the room, and who, I understand, is a sort of favourite of the Chancellor. The obsequious grin, and the affected ease of this worthy, do not convey any very favourable impression on his behalf. He was solicitor for the Queen, and in this capacity formed an intimacy with her chief counsel, which an ill-natured person would perhaps think makes him now forget in some measure the great disparity betwixt their present condition. The Chancellor gave no discouragement to his familiarity \* \* \*. A variety of lords, squires, generals, *ossa innominata* followed, for whom the Chancellor cared perhaps about as much as I did. At length Sir James Scarlett was announced, and the Chancellor left his place to meet him. His welcome was very hearty. Brougham was doubtless gratified by this token of respect from a man who was indisputably his leader in the courts, and for whose forensic abilities it is known, that he entertains, and has often expressed, the highest admiration. The position of the two men was singular, and to the ex-attorney not very enviable. Scarlett was in high practice before Brougham was even called to the bar. He kept a head of him in their profession throughout; and twice he had filled the first places at the bar, when the respective attainments of these eminent persons were such, that if Brougham had been placed before him, Scarlett would have had just ground of complaint; and the bar would have unanimously decried the appointment. Now, however, by one of those cross accidents which will occur in the most fortunate lives, Scarlett was, with strict justice and universal acquiescence, placed below his

former competitor, and in direct opposition to all the early friends with whom he commenced his political career. It was matter of necessity and of course that he should go out when his employers were obliged to surrender office; and no man could complain that Brougham should then be elevated to a distinction, which in other circumstances Scarlett might have thought his own by indisputable right \* \* \*. The Speaker of the House of Commons was then announced. Brougham and he met as warm friends, though certainly men having little in kindred. In point of talent there is no ground of comparison; yet it may be doubted whether they are not nearly as great in their own way. I have no notion of the place which the Speaker held in parliament before he was elected to the chair, and I know few situations which require more tact and management. In these qualifications the present Speaker is signally gifted. He brings a degree of good nature to the office, which no event, however untoward, can ruffle;—his calmness never forsakes him: he is the same easy, dignified chairman at all times. The Commons are a truly turbulent body, but they are not impatient of his sway. In all emergencies he is vigorously supported: in his hands, the authority of his office, though rarely exercised, has lost none of its force. Brougham himself was one of the most fiery spirits in this hot region; but a word from the Speaker would calm him in an instant. Among other qualifications for command, he is possessed of a fine mellow, deep-toned voice, which, while it powerfully enunciates the "Order," frees the command from all harshness or severity. As the first commoner in the land, and a truly estimable gentleman, he was entitled to be well received \* \* \*. The last person of note who arrived before I departed was Sir Thomas Denman. The Chancellor was engaged with some one at the moment, and nothing passed betwixt them but an exchange of bows. It was nearly ten years since I had seen Brougham and Denman together; the Queen's trial was then the all-engrossing topic of public consideration. Who could then have foretold that these men would have in so short a space won the confidence of a sovereign, whom they attacked with a degree of virulence which, even in those days of party violence, was generally condemned? The change in feeling is creditable alike to all."

Of the eloquence and general character of Lord Brougham, we have the following excellent portraiture by a master-hand:<sup>6</sup>—

"Mr. Brougham is from the North of England, but he was educated in Edinburgh, and represents that school of politics and political economy in the house. He differs from Sir James Mackintosh in this, that he deals less in

abstract principles, and more in individual details. He makes less use of general topics, and more of immediate facts. Sir James is better acquainted with the balance of an argument in old authors; Mr. Brougham with the balance of power in Europe. If the first is better versed in the progress of history, no man excels the last in a knowledge of the course of exchange. He is apprized of the exact state of our exports and imports, and scarce a ship clears out its cargo at Liverpool or Hull, but he has notice of the bill of lading. Our colonial policy, prison discipline, the state of the hulks, agricultural distress, commerce and manufactures, the bullion question, the Catholic Question, the Bourbons or the Inquisition, 'domestic treason, foreign levy,' nothing can come amiss to him—he is at home in the crooked mazes of rotten boroughs, is not baffled by Scotch law, and can follow the meaning of one of Mr. Canning's speeches. With so many resources, with such variety and solidity of information, Mr. Brougham is rather a powerful and alarming, than an effectual debater. In so many details (which he himself goes through with unwearied and unshrinking resolution) the spirit of the question is lost to others who have not the same voluntary power of attention or the same interest in hearing that he has in speaking; the original impulse that urged him forward is forgotten in so wide a field, in so interminable a career. If he can, others *cannot* carry all he knows in their heads at the same time; a rope of circumstantial evidence does not hold well together, nor drag the unwilling mind along with it (the willing mind hurries on before it, and grows impatient and absent)—he moves in an unmanageable procession of facts and proofs, instead of coming to the point at once—and his premises (so anxious is he to proceed on sure and ample grounds) overlay and block up his conclusion, so that you cannot arrive at it, or not till the first fury and shock of the onset is over. The ball, from the too great width of the *calibre* from which it is sent, and from striking against such a number of hard, projecting points, is almost spent before it reaches its destination. He keeps a ledger or a debtor-and-creditor account between the government and the country, posts so much actual crime, corruption, and injustice against so much contingent advantage or sluggish prejudice, and at the bottom of the page brings in the balance of indignation and contempt, where it is due. But people are not to be *calculated into* contempt or indignation on abstract grounds; for however they may submit to this process where their own interests are concerned, in what regards the public good we believe they must see and feel instinctively, or not at all. There is (it is to be lamented) a good deal of froth as well as strength in the popular spirit, which will not admit of being *decanted* or served out in formal

dribblets; nor will spleen (the soul of opposition) bear to be corked up in square patent bottles, and kept for future use!

"Mr. Brougham speaks in a loud and unmitigated tone of voice, sometimes almost approaching to a scream. He is fluent, rapid, vehement, full of his subject, with evidently a great deal to say, and very regardless of the manner of saying it. As a lawyer, he has not hitherto been remarkably successful. He is not profound in cases and reports, nor does he take much interest in the peculiar features of a particular cause, or show much adroitness in the management of it. He carries too much weight of metal for ordinary and petty occasions: he must have a pretty large question to discuss, and must make *thorough-stitch* work of it. Mr. Brougham writes almost, if not quite, as well as he speaks. In the midst of an election contest he comes out to address the populace, and goes back to his study to finish an article for the *Edinburgh Review*, sometimes indeed wedging three or four articles (in the shape of *refaccimentos* of his own pamphlets or speeches in parliament) into a single number. Such indeed is the activity of his mind that it appears to require neither repose, nor any other stimulus than a delight in its own exercise. He can turn his hand to any thing, but he cannot be idle. There are few intellectual accomplishments which he does not possess, and possess in a very high degree. He speaks French (and, we believe, several other modern languages) fluently: is a capital mathematician, and obtained an introduction to the celebrated Carnot in this latter character, when the conversation turned on squaring the circle, and not on the propriety of confining France within the natural boundary of the Rhine. Mr. Brougham is, in fact, a striking instance of the versatility and strength of the human mind, and also in one sense of the length of human life, if we make a good use of our time. There is room enough to crowd almost every art and science into it. If we pass 'no day without a line,' visit no place without the company of a book, we may with ease fill libraries or empty them of their contents. Those who complain of the shortness of life, let it slide by them without wishing to seize and make the most of its golden minutes. The more we do, the more we can do; the more busy we are, the more leisure we have. Mr. Brougham, among other means of strengthening and enlarging his views, has visited, we believe, most of the courts, and turned his attention to most of the constitutions of the continent. He is, no doubt, a very accomplished, active-minded, and admirable person."

Lord Brougham married, in 1816, Mary Anne, relict of John Slade, Esq., of Hill street, Berkeley-square; by whom he has one daughter. Lady Brougham's

maiden name was Eden: she is nearly related to the Auckland and Handley families. At her marriage with Mr. Slade, in 1808, she was accounted an extremely beautiful young woman; and she was still possessed of great personal charms at the period of her second union. Lady Brougham had by her former marriage a son, who inherits his father's estate, and is an officer in the army, and a daughter. Lady Brougham brought no property to her husband but her jointure of £1,500 a-year, and the house No. 5, Hill-street.

Lord Brougham was born in 1779, and is, consequently, in his fifty-second year.

**Footnote 1:** ([return](#))

We are aware of having already quoted these particulars, from the *Spectator* newspaper, at page 412 of the *Mirror*, vol. xvi. but their repetition here is essential to the completeness of the present Memoir. Of Lord Brougham's family, in connexion with Brougham Castle, in Westmoreland, there were many conflicting statements at the period of his lordship's elevation to the peerage towards the close of last year. The Chancellor is said to have had a latent claim as heir-general to the Barony of Vaux, (whose arms are to be seen on the tower of Brougham Castle,) and hence his creation by that title. Some exclusive information, obligingly furnished, (at the Chancellor's request, in reply to our application) by a relative of his lordship, will also be found at length in the *Mirror*, vol. xvi. but for the reader's convenience we quote its substance: "Before the time of the Norman Conquest, the manor and lordship of Brougham (then called Burgham) were held by the Saxon family of de Burgham, from whom the Lord Chancellor is lineally descended. After the Conquest, William the Norman granted to Robert de Veteripont, or Vipont, extensive rights and territories in Westmoreland; and among others, some oppressive rights of seigniorship over the manor of Brougham, then held by Walter de Burgham. To relieve the estate of such services, Gilbert de Burgham, in the reign of King John, agreed to give up absolutely one-third part of his estate to Robert de Veteripont, and also the advowson of the rectory of Brougham. This third comprises the land upon which the castle is built, and the estate afterwards given by Anne Countess of Pembroke, (heiress of Veteripont,) to the Hospital of Poor Widows at Appleby. Brougham Castle, if not built, was much extended by Veteripont; and afterwards still more enlarged by Roger Clifford, who succeeded, by marriage, to the Veteripont possessions. The manor house, about three quarters of a mile from the castle, continued in the Brougham family; and part of it, especially the gateway, is supposed to be of Saxon architecture: at all events, it is the earliest Norman. The chapel is also old, except the roof, which was renewed in the year 1659. In the year 1607, Thomas Brougham, then Lord of the Manor of Brougham, died without issue male, and the estate was sold to one Bird, who was steward of the Clifford family; the heir male of the Brougham family then residing at Scales Hall, in Cumberland. About 1680, John Brougham of Scales, re-purchased the estate and manor of Brougham from Bird's grandson and entailed it on his nephew, from whom it passed by succession to the Lord Chancellor."

**Footnote 2:** ([return](#))

The reader will find a concise narrative of the case of Mr. Smith, at page 408, vol. iii. of the *Mirror*.

**Footnote 3:** ([return](#))

In one day, during his visits to the freeholders, Mr. Brougham spoke eight speeches to eight meetings, travelled 120 miles, and entered court the next morning, wigged and gowned as if he had never quitted his chambers.

**Footnote 4:** ([return](#))

*Spectator* Newspaper, No. 126.

**Footnote 5:** ([return](#))

*Metropolitan*, edited by T. Campbell, Esq.—No. 1.

**Footnote 6:** ([return](#))

*Spirit of the Age; or, Contemporary Portraits*, 1825. By the late Mr. Hazlitt.

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# ENGRAVINGS.

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## *PORTRAIT OF THE LORD HIGH CHANCELLOR,*

### ENGRAVED ON STEEL.

Petrarch's House, at Arquà.  
Infantry at Mess.  
A Divided Duty.  
Picking your Way.  
Palman Qui Meruit Ferat.  
Chichester Cross.  
Castle of Vincennes.  
Auberge on the Grimsel.  
Christ Church, Doncaster.  
Strand Cross, Covent Garden, &c. 1547.  
Strand from Arundel House, 1700.  
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Byron's Palace at Venice.  
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Peter the Great, Statue of.  
St. George's Chapel, Windsor.  
St. George's Hospital.  
Dramatic Annual,—Seven Cuts from.  
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Amphill House.  
Boroughs—Dunwich, Sarum, Bramber.  
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